

美利坚合众国宪法（完整中英文对照版·含全部27条修正案）

说明：英文原文为美国国家档案馆官方定本；中文采用国内权威通行译本，全文补齐宪法正文7条+全部27条修正案，废止条款标注注释，版式适配Word，可直接复制导出PDF。

Preamble 序言

English： We the People of the United States, in Order to form a more perfect Union, establish Justice, ensure domestic Tranquility, provide for the common defence, promote the general Welfare, and secure the Blessings of Liberty to ourselves and our Posterity, do ordain and establish this Constitution for the United States of America.

中文： 我们合众国人民，为建立更完善的联邦，树立正义，保障国内安宁，提供共同防务，促进普遍福利，并使我们自己和后代得享自由的幸福，特为美利坚合众国制定本宪法。

Article I 第一条（立法权·国会）

Section 1

English： All legislative Powers herein granted shall be vested in a Congress of the United States, which shall consist of a Senate and House of Representatives.

中文： 本宪法所授予的全部立法权，均属于由参议院和众议院组成的合众国国会。

Section 2

English： The House of Representatives shall be composed of Members chosen every second Year by the People of the several States, and the Electors in each State shall have the Qualifications requisite for Electors of the most numerous Branch of the State Legislature.

中文： 众议院由各州人民每两年选举产生的议员组成，各州选举人应具备该州州议会人数最多一院选举人所必需的资格。

English： No Person shall be a Representative who shall not have attained to the Age of twenty five Years, and been seven Years a Citizen of the United States, and who shall not, when elected, be an Inhabitant of that State in which he shall be chosen.

中文： 凡年龄未满二十五岁、为合众国公民未满七年、当选时非其选出州居民者，不得为众议院议员。

English: Representatives and direct Taxes shall be apportioned among the several States which may be included within this Union, according to their respective Numbers, which shall be determined by adding to the whole Number of free Persons, including those bound to Service for a Term of Years, and excluding Indians not taxed, three fifths of all other Persons. The actual Enumeration shall be made within three Years after the first Meeting of the Congress of the United States, and within every subsequent Term of ten Years, in such Manner as they shall by Law direct. The Number of Representatives shall not exceed one for every thirty Thousand, but each State shall have at Least one Representative; and until such enumeration shall be made, the State of New Hampshire shall be entitled to chuse three, Massachusetts eight, Rhode-Island and Providence Plantations one, Connecticut five, New-York six, New Jersey four, Pennsylvania eight, Delaware one, Maryland six, Virginia ten, North Carolina five, South Carolina five, and Georgia three.

中文: 众议员名额和直接税税额，应按本联邦内各州人口比例进行分配。各州人口数，按自由人总数加上所有其他人口的五分之三予以确定。自由人总数包括必须服一定年限劳役的人，但不包括未被征税的印第安人。人口的实际统计在合众国国会第一次会议后三年内和此后每十年内，依法律规定的方式进行。每三万人选出的众议员人数不得超过一名，但每州至少应有一名众议员；在进行上述人口统计以前，新罕布什尔州有权选出三名，马萨诸塞州八名，罗德岛州及普罗维登斯种植地一名，康涅狄格州五名，纽约州六名，新泽西州四名，宾夕法尼亚州八名，特拉华州一名，马里兰州六名，弗吉尼亚州十名，北卡罗来纳州五名，南卡罗来纳州五名，佐治亚州三名。

注释：本条“五分之三条款”已被第14修正案废止

English: When vacancies happen in the Representation from any State, the Executive Authority thereof shall issue Writs of Election to fill such Vacancies.

中文: 任何一州众议员出现缺额时，该州行政当局应发布选举令，以补足此项缺额。

English: The House of Representatives shall chuse their Speaker and other Officers; and shall have the sole Power of Impeachment.

中文: 众议院应选举该院议长及其他官员；并独有弹劾权。

Section 3

English: The Senate of the United States shall be composed of two Senators from each State, chosen by the Legislature thereof, for six Years; and each Senator shall have one Vote.

中文: 合众国参议院由每州州议会选出两名参议员组成，任期六年；每名参议员有一票表决权。

注释：参议员选举方式被第17修正案修改，改为民众直选

English: Immediately after they shall be assembled in Consequence of the first Election, they shall be divided as equally as may be into three Classes. The Seats of the Senators of the first Class shall be vacated at the Expiration of the second Year, of the second Class at the Expiration of the fourth Year, and of the third Class at the Expiration of the sixth Year, so that one third may be chosen every second Year; and if Vacancies happen by Resignation, or otherwise, during the

Recess of the Legislature of any State, the Executive thereof may make temporary Appointments until the next Meeting of the Legislature, which shall then fill such Vacancies.

中文：参议员在第一次选举后集会时，应即分为人数尽可能相等的三个组。第一组参议员席位在第二年年终空出，第二组参议员席位在第四年年终空出，第三组参议员席位在第六年年终空出，以便每两年改选三分之一的参议员。在任何一州州议会休会期间，如因辞职或其他原因出现参议员缺额时，该州行政长官可作出临时任命，直到州议会下一次集会，补足该项缺额。

English： No Person shall be a Senator who shall not have attained to the Age of thirty Years, and been nine Years a Citizen of the United States, and who shall not, when elected, be an Inhabitant of that State for which he shall be chosen.

中文：凡年龄未满三十岁、为合众国公民未满九年、当选时非其选出州居民者，不得为参议员。

English： The Vice President of the United States shall be President of the Senate, but shall have no Vote, unless they be equally divided.

中文：合众国副总统为参议院议长，但除双方票数相等外，无投票权。

English： The Senate shall chuse their other Officers, and also a President pro tempore, in the Absence of the Vice President, or when he shall exercise the Office of President of the United States.

中文：参议院应选举该院其他官员，并在副总统缺席或执行合众国总统职务时，选举临时议长。

English： The Senate shall have the sole Power to try all Impeachments. When sitting for that Purpose, they shall be on Oath or Affirmation. When the President of the United States is tried, the Chief Justice shall preside: And no Person shall be convicted without the Concurrence of two thirds of the Members present.

中文：参议院独有审理一切弹劾案之权。为此目的开庭时，全体参议员须宣誓或作代誓声明。合众国总统受审时，最高法院首席大法官主持审判。非经出席参议员三分之二同意，不得对任何人定罪。

English： Judgment in Cases of Impeachment shall not extend further than to removal from Office, and disqualification to hold and enjoy any Office of honor, Trust or Profit under the United States: but the Party convicted shall nevertheless be liable and subject to Indictment, Trial, Judgment and Punishment, according to Law.

中文：弹劾案的判决，不得超过免职及剥夺其担任和享有合众国任何荣誉职位、信托职位或有薪职位的资格；但被定罪者仍应依法受公诉、审理、判决及惩罚。

Section 4

English： The Times, Places and Manner of holding Elections for Senators and Representatives, shall be prescribed in each State by the Legislature thereof; but the Congress may at any time by Law make or alter such Regulations, except as to the Places of chusing Senators.

中文：各州举行参议员与众议员选举的时间、地点与方式，由各州州议会规定；但国会可以随时以法律制定或修改此类规定，但选择参议员的地点除外。

English: The Congress shall assemble at least once in every Year, and such Meeting shall be on the first Monday in December, unless they shall by Law appoint a different Day.

中文: 国会每年至少集会一次，除法律另定日期外，集会日期为12月第一个星期一。

注释：本条国会集会日期被第20修正案修改

Section 5

English: Each House shall be the Judge of the Elections, Returns and Qualifications of its own Members, and a Majority of each shall constitute a Quorum to do Business; but a smaller Number may adjourn from day to day, and may be authorized to compel the Attendance of absent Members, in such Manner, and under such Penalties as each House may provide.

中文: 各院自行审查本院议员的选举、选举结果报告和议员资格。每院出席议员过半数即构成处理事务的法定人数；不足法定人数时，可逐日休会，并可依各院规定的方式与罚则，强迫缺席议员出席。

English: Each House may determine the Rules of its Proceedings, punish its Members for disorderly Behaviour, and, with the Concurrence of two thirds, expel a Member.

中文: 各院可规定本院议事规则，惩罚本院扰乱秩序的议员，并经三分之二议员同意，开除议员。

English: Each House shall keep a Journal of its Proceedings, and from time to time publish the same, excepting such Parts as may in their Judgment require Secrecy; and the Yeas and Nays of the Members of either House on any question shall, at the Desire of one fifth of those Present, be entered on the Journal.

中文: 各院应保存议事记录，除认为需要保密的部分外，随时予以公布；任一院议员对任何问题的赞成或反对票，经出席议员五分之一的要求，即应载入议事记录。

English: Neither House, during the Session of Congress, shall, without the Consent of the other, adjourn for more than three days, nor to any other Place than that in which the two Houses shall be sitting.

中文: 国会开会期间，任一院未经另一院同意，休会不得超过三日，亦不得迁至两院集会地以外的地点开会。

Section 6

English: The Senators and Representatives shall receive a Compensation for their Services, to be ascertained by Law, and paid out of the Treasury of the United States. They shall in all Cases, except Treason, Felony and Breach of the Peace, be privileged from Arrest during their Attendance at the Session of their respective Houses, and in going to and returning from the same; and for any Speech or Debate in either House, they shall not be questioned in any other Place.

中文: 参议员与众议员得接受法律规定、由合众国国库支付的报酬。除叛国罪、重罪及妨害治安罪外，两院议员在出席各自议院会议期间及往返途中，不受逮捕；在议院发表的任何演说或辩论，在任

何其他地方不受质询。

English: No Senator or Representative shall, during the Time for which he was elected, be appointed to any civil Office under the Authority of the United States, which shall have been created, or the Emoluments whereof shall have been encreased during such time; and no Person holding any Office under the United States, shall be a Member of either House during his Continuance in Office.

中文: 任何参议员或众议员，在当选任期内，不得被任命担任在此期间新设或增薪的合众国任何文官职务。凡在合众国任职人员，在继续任职期间，不得担任两院任何一院的议员。

Section 7

English: All Bills for raising Revenue shall originate in the House of Representatives; but the Senate may propose or concur with Amendments as on other Bills.

中文: 一切筹款法案应由众议院提出；但参议院可以像对待其他法案一样，提出修正案或表示赞同。

English: Every Bill which shall have passed the House of Representatives and the Senate, shall, before it become a Law, be presented to the President of the United States; If he approve he shall sign it, but if not he shall return it, with his Objections to that House in which it shall have originated, who shall enter the Objections at large on their Journal, and proceed to reconsider it. If after such Reconsideration two thirds of that House shall agree to pass the Bill, it shall be sent, together with the Objections, to the other House, by which it shall likewise be reconsidered, and if approved by two thirds of that House, it shall become a Law. But in all such Cases the Votes of both Houses shall be determined by yeas and Nays, and the Names of the Persons voting for and against the Bill shall be entered on the Journal of each House respectively. If any Bill shall not be returned by the President within ten Days (Sundays excepted) after it shall have been presented to him, the same shall be a Law, in like Manner as if he had signed it, unless the Congress by their Adjournment prevent its Return, in which Case it shall not be a Law.

中文: 凡经众议院和参议院通过的法案，在正式成为法律之前，须呈送合众国总统；总统如批准，便须签署，如不批准，即应连同他的异议把法案退还给原提案议院。该院应将异议详细记入议事记录，然后复议。如复议后该院三分之二议员同意通过该法案，应连同异议送交另一院复议；如另一院也以三分之二议员通过，该法案即成为法律。在这种情况下，两院的表决均应以赞成或反对票决定。投票赞成或反对该法案的议员姓名，应分别载入各院议事记录。如法案呈交总统后十日（星期日除外）内未经总统退回，该法案如同总统签署一样成为法律；如国会因休会使该法案无法退回，则不得成为法律。

English: Every Order, Resolution, or Vote to which the Concurrence of the Senate and House of Representatives may be necessary (except on a question of Adjournment) shall be presented to the President of the United States; and before the Same shall take Effect, shall be approved by him, or being disapproved by him, shall be repassed by two thirds of the Senate and House of Representatives, according to the Rules and Limitations prescribed in the Case of a Bill.

中文：凡需参议院与众议院一致同意的命令、决议或表决（休会问题除外），均应呈送合众国总统；经总统批准后方能生效；如总统否决，须依照法案规定的规则与限制，经参议院与众议院三分之二重新通过方能生效。

Section 8 国会专属权力

English： The Congress shall have Power To lay and collect Taxes, Duties, Imposts and Excises, to pay the Debts and provide for the common Defence and general Welfare of the United States; but all Duties, Imposts and Excises shall be uniform throughout the United States;

中文：国会有权规定并征收税金、关税、输入税和货物税，以偿付国债、提供合众国共同防务和公共福利，但一切关税、输入税和货物税应全国统一；

English： To borrow Money on the credit of the United States;

中文：以合众国的信用借款；

English： To regulate Commerce with foreign Nations, and among the several States, and with the Indian Tribes;

中文：管制同外国、各州之间以及同印第安部落的贸易；

English： To establish an uniform Rule of Naturalization, and uniform Laws on the subject of Bankruptcies throughout the United States;

中文：制定全国统一的归化条例和破产法；

English： To coin Money, regulate the Value thereof, and of foreign Coin, and fix the Standard of Weights and Measures;

中文：铸造货币，厘定本国货币和外国货币的价值，并确定度量衡标准；

English： To provide for the Punishment of counterfeiting the Securities and current Coin of the United States;

中文：制定对伪造合众国证券和流通货币的惩罚规则；

English： To establish Post Offices and post Roads;

中文：设立邮政局并开辟邮政道路；

English： To promote the Progress of Science and useful Arts, by securing for limited Times to Authors and Inventors the exclusive Right to their respective Writings and Discoveries;

中文：为促进科学和实用技艺的进步，对作家和发明家的著作和发明，在一定期限内给予专利权的保障；

English： To constitute Tribunals inferior to the supreme Court;

中文：设立低于最高法院的各级法院；

English： To define and punish Piracies and Felonies committed on the high Seas, and Offences against the Law of Nations;

中文： 界定并惩罚海盗罪、在公海所犯的重罪以及违反国际法的罪行；

English： To declare War, grant Letters of Marque and Reprisal, and make Rules concerning Captures on Land and Water;

中文： 宣战，颁发捕获敌船许可状，制定关于陆地和水上捕获的条例；

English： To raise and support Armies, but no Appropriation of Money to that Use shall be for a longer Term than two Years;

中文： 招募陆军并供给军需，但此项经费的拨款期限不得超过两年；

English： To provide and maintain a Navy;

中文： 建立和维持一支海军；

English： To make Rules for the Government and Regulation of the land and naval Forces;

中文： 制定统辖和管理陆海军的条例；

English： To provide for calling forth the Militia to execute the Laws of the Union, suppress Insurrections and repel Invasions;

中文： 规定征召民兵，以执行联邦法律、镇压叛乱和击退入侵；

English： To provide for organizing, arming, and disciplining, the Militia, and for governing such Part of them as may be employed in the Service of the United States, reserving to the States respectively, the Appointment of the Officers, and the Authority of training the Militia according to the discipline prescribed by Congress;

中文： 规定民兵的组织、武装与训练，并规定征召为合众国服役的民兵的管理办法；但任命民兵军官的权力，以及根据国会规定条例训练民兵的权力，由各州保留；

English： To exercise exclusive Legislation in all Cases whatsoever, over such District (not exceeding ten Miles square) as may, by Cession of particular States, and the Acceptance of Congress, become the Seat of the Government of the United States, and to exercise like Authority over all Places purchased by the Consent of the Legislature of the State in which the Same shall be, for the Erection of Forts, Magazines, Arsenals, dock-Yards, and other needful Buildings;—And

中文： 对由某些州让与、经国会接受，作为合众国政府所在地的区域（面积不超过十平方英里）行使一切事项的专属立法权；对于经所在州议会同意购置的、用于修筑要塞、军火库、兵工厂、船坞和其他必要建筑物的地方，行使同样权力；

English： To make all Laws which shall be necessary and proper for carrying into Execution the foregoing Powers, and all other Powers vested by this Constitution in the Government of the United States, or in any Department or Officer thereof.

中文： 制定为行使上述各项权力和由本宪法授予合众国政府或其任何部门或官员的一切其他权力所必要和适当的法律。

Section 9

English: The Migration or Importation of such Persons as any of the States now existing shall think proper to admit, shall not be prohibited by the Congress prior to the Year one thousand eight hundred and eight, but a Tax or duty may be imposed on such Importation, not exceeding ten dollars for each Person.

中文: 现有任何一州认为准予入境之人的迁徙或输入，在1808年以前，国会不得禁止，但可对其输入课税，每人不得超过十美元。

注释：本条奴隶贸易条款到期自动失效

English: The Privilege of the Writ of Habeas Corpus shall not be suspended, unless when in Cases of Rebellion or Invasion the public Safety may require it.

中文: 人身保护令状的特权不得中止，除非在叛乱或入侵情况下，为公共安全之必需。

English: No Bill of Attainder or ex post facto Law shall be passed.

中文: 不得通过剥夺公权法案或追溯既往的法律。

English: No Capitation, or other direct, Tax shall be laid, unless in Proportion to the Census or enumeration herein before directed to be taken.

中文: 除非按本宪法前文规定的人口普查比例，不得征收人头税或其他直接税。

注释：本条被第16修正案修改，允许征收所得税

English: No Tax or Duty shall be laid on Articles exported from any State.

中文: 对任何一州输出的货物，不得征税。

English: No Preference shall be given by any Regulation of Commerce or Revenue to the Ports of one State over those of another: nor shall Vessels bound to, or from, one State, be obliged to enter, clear, or pay Duties in another.

中文: 任何有关商业或税收的条例，不得给予一州港口优于另一州港口的特惠；开往或来自一州的船舶，不得被强迫在另一州入港、清关或纳税。

English: No Money shall be drawn from the Treasury, but in Consequence of Appropriations made by Law; and a regular Statement and Account of the Receipts and Expenditures of all public Money shall be published from time to time.

中文: 除依据法律拨款外，不得从国库支取款项；一切公款收支的定期报告和账目，应随时公布。

English: No Title of Nobility shall be granted by the United States: And no Person holding any Office of Profit or Trust under them, shall, without the Consent of the Congress, accept of any present, Emolument, Office, or Title, of any kind whatever, from any King, Prince, or foreign State.

中文: 合众国不得授予贵族爵位。凡在合众国担任有薪俸或受托职务者，未经国会同意，不得接受任何国王、君主或外国所赠与的任何礼物、薪酬、职务或爵位。

Section 10

English: No State shall enter into any Treaty, Alliance, or Confederation; grant Letters of Marque and Reprisal; coin Money; emit Bills of Credit; make any Thing but gold and silver Coin a Tender in Payment of Debts; pass any Bill of Attainder, ex post facto Law, or Law impairing the Obligation of Contracts, or grant any Title of Nobility.

中文: 任何一州不得缔结条约、同盟或邦联；不得颁发捕获敌船许可状；不得铸造货币；不得发行信用券；不得将金银币以外的任何物品作为偿还债务的法定货币；不得通过剥夺公权法案、追溯既往的法律、损害契约义务的法律；不得授予贵族爵位。

English: No State shall, without the Consent of the Congress, lay any Imposts or Duties on Imports or Exports, except what may be absolutely necessary for executing it's inspection Laws: and the net Produce of all Duties and Imposts, laid by any State on Imports or Exports, shall be for the Use of the Treasury of the United States; and all such Laws shall be subject to the Revision and Controul of the Congress.

中文: 未经国会同意，任何一州不得对进出口货物征收进口税或出口税，但为执行该州检查法令所绝对必要者不在此限。任何一州对进出口货物所征一切税的纯收入，应归合众国国库；所有这类法律均受国会的审核与管制。

English: No State shall, without the Consent of Congress, lay any Duty of Tonnage, keep Troops, or Ships of War in time of Peace, enter into any Agreement or Compact with another State, or with a foreign Power, or engage in War, unless actually invaded, or in such imminent Danger as will not admit of delay.

中文: 未经国会同意，任何一州不得征收船舶吨税；不得在和平时期保持军队或战舰；不得与另一州或外国缔结协定或盟约；除非已遭受入侵或面临刻不容缓的紧急危险，不得进行战争。

Article II 第二条（行政权·总统）

Section 1

English: The executive Power shall be vested in a President of the United States of America. He shall hold his Office during the Term of four Years, and, together with the Vice President, chosen for the same Term, be elected, as follows:

中文: 行政权属于美利坚合众国总统。总统任期四年，副总统任期亦为四年。总统与副总统的选举方式如下：

English: Each State shall appoint, in such Manner as the Legislature thereof may direct, a Number of Electors, equal to the whole Number of Senators and Representatives to which the State may be entitled in the Congress: but no Senator or Representative, or Person holding an Office of Trust or Profit under the United States, shall be appointed an Elector.

中文: 各州依照州议会规定的方式，选派选举人若干名，其人数等于该州在国会所拥有的参议员与众议员总数。但参议员、众议员以及在合众国担任有薪俸或受托职务者，不得被选派为选举人。

English: The Electors shall meet in their respective States, and vote by Ballot for two Persons, of whom one at least shall not be an Inhabitant of the same State with themselves. And they shall make a List of all the Persons voted for, and of the Number of Votes for each; which List they shall sign and certify, and transmit sealed to the Seat of the Government of the United States, directed to the President of the Senate. The President of the Senate shall, in the Presence of the Senate and House of Representatives, open all the Certificates, and the Votes shall then be counted. The Person having the greatest Number of Votes shall be the President, if such Number be a Majority of the whole Number of Electors appointed; and if there be more than one who have such Majority, and have an equal Number of Votes, then the House of Representatives shall immediately chuse by Ballot one of them for President; and if no Person have a Majority, then from the five highest on the List the said House shall in like Manner chuse the President. But in chusing the President, the Votes shall be taken by States, the Representation from each State having one Vote; A quorum for this Purpose shall consist of a Member or Members from two thirds of the States, and a Majority of all the States shall be necessary to a Choice. In every Case, after the Choice of the President, the Person having the greatest Number of Votes of the Electors shall be the Vice President. But if there should remain two or more who have equal Votes, the Senate shall chuse from them by Ballot the Vice President.

中文: 选举人在各自州内集会，投票选举两人，其中至少有一人不是选举人本州居民。选举人应列出所有被选人的名单及每人得票数，签名证明，密封后送至合众国政府所在地，交参议院议长。参议院议长应在参议院与众议院全体议员面前开启所有证书，然后计算票数。获得选票最多者，如该票数占全部选举人的多数，即当选总统。如有一人以上获得多数票且票数相等，众议院应立即投票选举其中一人为总统。如无人获得多数票，众议院应从名单上得票最多的五人中，以同样方式选出总统。选举总统时，按州投票，每州代表有一票；为此而开会的法定人数，须有三分之二州至少一名议员出席，且须获得全部州的过半数票才能选出总统。在任何情况下，选出总统之后，获得选举人票数最多者为副总统。如仍有两人或多人票数相等，参议院应投票选出副总统。

注释：选举人投票规则被第12修正案完全修改

English: The Congress may determine the Time of chusing the Electors, and the Day on which they shall give their Votes; which Day shall be the same throughout the United States.

中文: 国会可决定选派选举人的时间以及选举人投票日期，该日期全国统一。

English: No Person except a natural born Citizen, or a Citizen of the United States, at the time of the Adoption of this Constitution, shall be eligible to the Office of President; neither shall any Person be eligible to that Office who shall not have attained to the Age of thirty five Years, and been fourteen Years a Resident within the United States.

中文: 除出生即为合众国公民，或在本宪法通过时已是合众国公民者外，任何人不得当选总统；凡年龄未满三十五岁、在合众国境内居住未满十四年者，不得当选总统。

English: In Case of the Removal of the President from Office, or of his Death, Resignation, or Inability to discharge the Powers and Duties of the said Office, the Same shall devolve on the Vice President, and the Congress may by Law provide for the Case of Removal, Death,

Resignation or Inability, both of the President and Vice President, declaring what Officer shall then act as President, and such Officer shall act accordingly, until the Disability be removed, or a President shall be elected.

中文：如总统被免职、死亡、辞职或丧失履行总统权力与职责的能力，该项职权由副总统接任。国会可以立法规定在总统和副总统同时免职、死亡、辞职或丧失能力的情况下，由哪位官员代行总统职权，该官员即据此代行职权，直至丧失能力状况消除或选出新总统为止。

注释：本条总统继任规则被第25修正案细化完善

English： The President shall, at stated Times, receive for his Services, a Compensation, which shall neither be encreased nor diminished during the Period for which he shall have been elected, and he shall not receive within that Period any other Emolument from the United States, or any of them.

中文：总统于任期内应按期领取服务报酬，该项报酬在其当选任期内不得增减；任期内不得从合众国或任何一州领取其他薪酬。

English： Before he enter on the Execution of his Office, he shall take the following Oath or Affirmation:— “I do solemnly swear (or affirm) that I will faithfully execute the Office of President of the United States, and will to the best of my Ability, preserve, protect and defend the Constitution of the United States.”

中文：总统在就职前，须作如下宣誓或代誓声明：“我郑重宣誓（或郑重声明），我将忠实执行合众国总统职务，竭尽全力，恪守、维护和捍卫合众国宪法。”

Section 2

English： The President shall be Commander in Chief of the Army and Navy of the United States, and of the Militia of the several States, when called into the actual Service of the United States; he may require the Opinion, in writing, of the principal Officer in each of the executive Departments, upon any Subject relating to the Duties of their respective Offices, and he shall have Power to grant Reprieves and Pardons for Offences against the United States, except in Cases of Impeachment.

中文：总统为合众国陆海军以及各州奉召为合众国服役的民兵的总司令；他可要求各行政部门主管官员，就其职务范围内任何事项提供书面意见；除弹劾案外，总统有权对危害合众国的犯罪准予缓刑或赦免。

English： He shall have Power, by and with the Advice and Consent of the Senate, to make Treaties, provided two thirds of the Senators present concur; and he shall nominate, and by and with the Advice and Consent of the Senate, shall appoint Ambassadors, other public Ministers and Consuls, Judges of the supreme Court, and all other Officers of the United States, whose Appointments are not herein otherwise provided for, and which shall be established by Law: but the Congress may by Law vest the Appointment of such inferior Officers, as they think proper, in the President alone, in the Courts of Law, or in the Heads of Departments.

中文：总统经参议院建议与同意，有权缔结条约，但须经出席参议员三分之二赞同；总统提名，经参议院建议与同意，任命大使、其他公使、领事、最高法院法官，以及本宪法未另行规定、由法律设立的合众国其他官员。国会可以法律规定，将其认为合适的下级官员任命权授予总统单独行使、法院或各部部长。

English： The President shall have Power to fill up all Vacancies that may happen during the Recess of the Senate, by granting Commissions which shall expire at the End of their next Session.

中文：参议院休会期间，如遇职位空缺，总统有权颁发临时委任状，该项委任至参议院下届会议结束时失效。

Section 3

English： He shall from time to time give to the Congress Information of the State of the Union, and recommend to their Consideration such Measures as he shall judge necessary and expedient; he may, on extraordinary Occasions, convene both Houses, or either of them, and in Case of Disagreement between them, with Respect to the Time of Adjournment, he may adjourn them to such Time as he shall think proper; he shall receive Ambassadors and other public Ministers; he shall take Care that the Laws be faithfully executed, and shall Commission all the Officers of the United States.

中文：总统应随时向国会报告联邦情况，并向国会提出他认为必要且适宜的措施供审议；遇非常情况时，总统可召集两院或其中一院开会；如两院对于休会时间意见不一致，总统可令两院休会至他认为适当的时间；总统接见大使及其他公使；总统应监督法律忠实执行，并委任合众国所有官员。

Section 4

English： The President, Vice President and all civil Officers of the United States, shall be removed from Office on Impeachment for, and Conviction of, Treason, Bribery, or other high Crimes and Misdemeanors.

中文：合众国总统、副总统及所有文官，因叛国、贿赂或其他重罪与轻罪，经弹劾并定罪，应予免职。

Article III 第三条（司法权）

Section 1

English： The judicial Power of the United States, shall be vested in one supreme Court, and in such inferior Courts as the Congress may from time to time ordain and establish. The Judges, both of the supreme and inferior Courts, shall hold their Offices during good Behaviour, and shall, at stated Times, receive for their Services, a Compensation, which shall not be diminished during their Continuance in Office.

中文：合众国司法权属于一个最高法院以及由国会随时下令设立的下级法院。最高法院和下级法院的法官，只要品行端正，得继续任职；按期领取服务报酬，该项报酬在其任职期间不得削减。

Section 2

English： The judicial Power shall extend to all Cases, in Law and Equity, arising under this Constitution, the Laws of the United States, and Treaties made, or which shall be made, under their Authority;—to all Cases affecting Ambassadors, other public Ministers and Consuls;—to all Cases of admiralty and maritime Jurisdiction;—to Controversies to which the United States shall be a Party;—to Controversies between two or more States;—between a State and Citizens of another State;—between Citizens of different States;—between Citizens of the same State claiming Lands under Grants of different States, and between a State, or the Citizens thereof, and foreign States, Citizens or Subjects.

中文：司法权适用于本宪法、合众国法律及合众国已经缔结或将缔结的条约所引起的一切法律与衡平案件；一切涉及大使、其他公使及领事的案件；一切海事及海商案件；合众国作为当事人的诉讼；两州或多州之间的诉讼；一州与另一州公民之间的诉讼；不同州公民之间的诉讼；同州公民依据不同州授予土地的权利而发生的土地争议；一州或其公民与外国、外国公民或属民之间的诉讼。

注释：一州诉另一州公民的管辖权被第11修正案修改

English： In all Cases affecting Ambassadors, other public Ministers and Consuls, and those in which a State shall be Party, the supreme Court shall have original Jurisdiction. In all the other Cases before mentioned, the supreme Court shall have appellate Jurisdiction, both as to Law and Fact, with such Exceptions, and under such Regulations as the Congress shall make.

中文：凡涉及大使、其他公使、领事以及一州为一方当事人的一切案件，最高法院具有初审管辖权。上述所有其他案件，最高法院具有法律与事实的上诉管辖权，但国会可作出例外规定并制定条例。

English： The Trial of all Crimes, except in Cases of Impeachment, shall be by Jury; and such Trial shall be held in the State where the said Crimes shall have been committed; but when not committed within any State, the Trial shall be at such Place or Places as the Congress may by Law have directed.

中文：除弹劾案外，一切犯罪案件由陪审团审判；审判应在犯罪发生的州内举行；如犯罪不在任何州内发生，则在国会以法律指定的地点审判。

Section 3

English： Treason against the United States, shall consist only in levying War against them, or in adhering to their Enemies, giving them Aid and Comfort. No Person shall be convicted of Treason unless on the Testimony of two Witnesses to the same overt Act, or on Confession in open Court.

中文：对合众国的叛国罪只限于对合众国发动战争，或依附其敌人、给予敌人援助与支持。非经两名证人证明同一公开叛国行为，或本人在公开法庭认罪，不得判处叛国罪。

English: The Congress shall have Power to declare the Punishment of Treason, but no Attainder of Treason shall work Corruption of Blood, or Forfeiture except during the Life of the Person attainted.

中文: 国会有权规定叛国罪的刑罚；但叛国剥夺公权不得造成血统玷污，除被定罪者在世期间外，不得没收财产。

Article IV 第四条（州际关系）

Section 1

English: Full Faith and Credit shall be given in each State to the public Acts, Records, and judicial Proceedings of every other State. And the Congress may by general Laws prescribe the Manner in which such Acts, Records and Proceedings shall be proved, and the Effect thereof.

中文: 各州对其他各州的公共法案、记录和司法程序，应给予完全的信赖和尊重。国会可以一般法律规定证明此类法案、记录和司法程序的方式及其效力。

Section 2

English: The Citizens of each State shall be entitled to all Privileges and Immunities of Citizens in the several States.

中文: 每州公民均享有各州公民的一切特权与豁免权。

English: A Person charged in any State with Treason, Felony, or other Crime, who shall flee from Justice, and be found in another State, shall on Demand of the executive Authority of the State from which he fled, be delivered up, to be removed to the State having Jurisdiction of the Crime.

中文: 在任何一州被控叛国、重罪或其他罪行而逃避司法、在另一州被发现者，应根据其逃离州行政当局的请求，将其引渡至对该罪行有管辖权的州。

English: No Person held to Service or Labour in one State, under the Laws thereof, escaping into another, shall, in Consequence of any Law or Regulation therein, be discharged from such Service or Labour, but shall be delivered up on Claim of the Party to whom such Service or Labour may be due.

中文: 根据一州法律须服劳役之人，逃往另一州，不得因该州任何法律或条例免除其劳役，而应根据享有劳役权一方的请求予以交还。

注释：本逃奴条款被第13修正案废止

Section 3

English: New States may be admitted by the Congress into this Union; but no new State shall be formed or erected within the Jurisdiction of any other State; nor any State be formed by the

Junction of two or more States, or Parts of States, without the Consent of the Legislatures of the States concerned as well as of the Congress.

中文：国会得准许新州加入本联邦；但未经有关州议会和国会同意，不得在任何州辖区内另建一州，也不得合并两州或数州、或数州的一部分而新建一州。

English： The Congress shall have Power to dispose of and make all needful Rules and Regulations respecting the Territory or other Property belonging to the United States; and nothing in this Constitution shall be so construed as to Prejudice any Claims of the United States, or of any particular State.

中文：国会有权处置属于合众国的领土或其他财产，并制定一切必要的条例；本宪法中任何条文，不得解释为有损合众国或任何一州的权利主张。

Section 4

English： The United States shall guarantee to every State in this Union a Republican Form of Government, and shall protect each of them against Invasion; and on Application of the Legislature, or of the Executive (when the Legislature cannot be convened) against domestic Violence.

中文：合众国保证联邦内每一州实行共和政体；保护各州不受入侵；当州议会或州行政长官（州议会无法召集时）请求时，保护各州不受内部暴乱侵害。

Article V 第五条（宪法修改程序）

English： The Congress, whenever two thirds of both Houses shall deem it necessary, shall propose Amendments to this Constitution, or, on the Application of the Legislatures of two thirds of the several States, shall call a Convention for proposing Amendments, which, in either Case, shall be valid to all Intents and Purposes, as Part of this Constitution, when ratified by the Legislatures of three fourths of the several States, or by Conventions in three fourths thereof, as the one or the other Mode of Ratification may be proposed by the Congress; Provided that no Amendment which may be made prior to the Year One thousand eight hundred and eight shall in any Manner affect the first and fourth Clauses in the Ninth Section of the first Article; and that no State, without its Consent, shall be deprived of equal Suffrage in the Senate.

中文：国会在两院三分之二议员认为必要时，应提出本宪法修正案；或根据三分之二州议会的请求，召开修宪会议提出修正案。以上两种方式提出的修正案，经四分之三州议会或四分之三州修宪会议批准（国会可提议采用其中一种批准方式），即作为本宪法的一部分而全部生效。但在1808年以前提出的修正案，不得以任何方式影响第一条第九款第一项和第四项；任何一州，未经其同意，不得被剥夺其在参议院中的平等投票权。

Article VI 第六条（最高法律条款）

English: All Debts contracted and Engagements entered into, before the Adoption of this Constitution, shall be as valid against the United States under this Constitution, as under the Confederation.

中文: 本宪法通过前所缔结的一切债务与承担的一切义务，在本宪法下对合众国同样有效，如同邦联时期一样。

English: This Constitution, and the Laws of the United States which shall be made in Pursuance thereof; and all Treaties made, or which shall be made, under the Authority of the United States, shall be the supreme Law of the Land; and the Judges in every State shall be bound thereby, any Thing in the Constitution or Laws of any State to the Contrary notwithstanding.

中文: 本宪法及依本宪法制定的合众国法律，以及合众国已经缔结或将缔结的一切条约，均为全国最高法律；各州法官均受其约束，不管任何州的宪法或法律有相反规定。

English: The Senators and Representatives before mentioned, and the Members of the several State Legislatures, and all executive and judicial Officers, both of the United States and of the several States, shall be bound by Oath or Affirmation, to support this Constitution; but no religious Test shall ever be required as a Qualification to any Office or public Trust under the United States.

中文: 前述参议员、众议员、各州州议会议员，合众国及各州一切行政与司法官员，均应宣誓或作代誓声明拥护本宪法；但合众国任何官职或公共信托职位，不得以宗教测验作为任职资格。

Article VII 第七条（宪法批准生效）

English: The Ratification of the Conventions of nine States, shall be sufficient for the Establishment of this Constitution between the States so ratifying the Same.

中文: 经九个州修宪会议批准，本宪法即在批准本宪法的各州之间生效。

宪法修正案（1-27条 完整中英文对照）

Amendment I 第一修正案（1791生效）宗教、言论、出版、集会、请愿自由

English: Congress shall make no law respecting an establishment of religion, or prohibiting the free exercise thereof; or abridging the freedom of speech, or of the press; or the right of the people peaceably to assemble, and to petition the Government for a redress of grievances.

中文: 国会不得制定关于确立国教或禁止信教自由的法律；不得剥夺言论自由或出版自由；不得剥夺人民和平集会以及向政府请愿伸冤的权利。

Amendment II 第二修正案（1791生效）持枪权

English: A well regulated Militia, being necessary to the security of a free State, the right of the people to keep and bear Arms, shall not be infringed.

中文: 一支管理良好的民兵队伍，对于自由州的安全实属必要；人民持有和携带武器的权利，不得予以侵犯。

Amendment III 第三修正案（1791生效）禁止强制驻军

English: No Soldier shall, in time of peace be quartered in any house, without the consent of the Owner, nor in time of war, but in a manner to be prescribed by law.

中文: 和平时期，未经房主同意，士兵不得在民房驻扎；战争时期，也只能依照法律规定的方式驻扎。

Amendment IV 第四修正案（1791生效）人身与财产不受无理搜查扣押

English: The right of the people to be secure in their persons, houses, papers, and effects, against unreasonable searches and seizures, shall not be violated, and no Warrants shall issue, but upon probable cause, supported by Oath or affirmation, and particularly describing the place to be searched, and the persons or things to be seized.

中文: 人民的人身、住宅、文件和财产不受无理搜查和扣押的权利，不得侵犯。除依据宣誓或代誓声明所证明的合理根据，并且详细写明应予搜查的地点、应予拘捕的人或应予扣押的物品外，不得签发搜查令。

Amendment V 第五修正案（1791生效）大陪审团、禁止双重危险、不自证其罪、正当程序、私有财产征收

English: No person shall be held to answer for a capital, or otherwise infamous crime, unless on a presentment or indictment of a Grand Jury, except in cases arising in the land or naval forces, or in the Militia, when in actual service in time of War or public danger; nor shall any person be subject for the same offence to be twice put in jeopardy of life or limb; nor shall be compelled in any criminal case to be a witness against himself, nor be deprived of life, liberty, or property, without due process of law; nor shall private property be taken for public use, without just compensation.

中文: 非经大陪审团提起公诉或起诉，任何人不得受死罪或其他重罪审判；陆海军或战时、公共危险时期服役的民兵案件除外。任何人不得因同一犯罪行为而两次遭受生命或肢体危险；不得在任何刑事案件中被迫自证其罪；未经正当法律程序，不得剥夺任何人生命、自由或财产；私有财产，非经公平补偿，不得收为公用。

Amendment VI 第六修正案（1791生效）刑事被告权利

English: In all criminal prosecutions, the accused shall enjoy the right to a speedy and public trial, by an impartial jury of the State and district wherein the crime shall have been committed,

which district shall have been previously ascertained by law, and to be informed of the nature and cause of the accusation; to be confronted with the witnesses against him; to have compulsory process for obtaining witnesses in his favor, and to have the Assistance of Counsel for his defence.

中文：在一切刑事诉讼中，被告有权由犯罪行为发生地的州和地区的公正陪审团予以迅速和公开审判，该地区事先由法律确定；被告有权获悉控告的性质和理由；同反对自己的证人对质；以强制程序取得对自己有利的证人；并获得辩护律师的协助。

Amendment VII 第七修正案（1791生效） 民事案件陪审团审判权

English： In Suits at common law, where the value in controversy shall exceed twenty dollars, the right of trial by jury shall be preserved, and no fact tried by a jury, shall be otherwise re-examined in any Court of the United States, than according to the rules of the common law.

中文：在普通法诉讼中，凡争执价值超过二十美元，应保留陪审团审判的权利；陪审团裁决的事实，合众国任何法院不得再依普通法以外规则重新审查。

Amendment VIII 第八修正案（1791生效） 禁止过重刑罚

English： Excessive bail shall not be required, nor excessive fines imposed, nor cruel and unusual punishments inflicted.

中文：不得要求过重保释金，不得课以过高罚金，不得施加残酷和异常的刑罚。

Amendment IX 第九修正案（1791生效） 人民保留未列举权利

English： The enumeration in the Constitution, of certain rights, shall not be construed to deny or disparage others retained by the people.

中文：宪法列举的某些权利，不得被解释为否定或轻视人民保留的其他权利。

Amendment X 第十修正案（1791生效） 州与人民保留权力

English： The powers not delegated to the United States by the Constitution, nor prohibited by it to the States, are reserved to the States respectively, or to the people.

中文：本宪法未授予合众国、也未禁止各州行使的权力，由各州各自保留，或由人民保留。

Amendment XI 第十一修正案（1798生效） 州主权豁免

English： The Judicial power of the United States shall not be construed to extend to any suit in law or equity, commenced or prosecuted against one of the United States by Citizens of another State, or by Citizens or Subjects of any Foreign State.

中文：合众国司法权不得解释为适用于他州公民或任何外国公民、属民对合众国任一州提起的普通法或衡平法诉讼。

Amendment XII 第十二修正案（1804生效）总统副总统选举规则修正

English: The Electors shall meet in their respective states, and vote by ballot for President and Vice-President, one of whom, at least, shall not be an inhabitant of the same state with themselves; they shall name in their ballots the person voted for as President, and in distinct ballots the person voted for as Vice-President, and they shall make distinct lists of all persons voted for as President, and of all persons voted for as Vice-President, and of the number of votes for each, which lists they shall sign and certify, and transmit sealed to the seat of the government of the United States, directed to the President of the Senate;—The President of the Senate shall, in the presence of the Senate and House of Representatives, open all the certificates and the votes shall then be counted;—The person having the greatest number of votes for President, shall be the President, if such number be a majority of the whole number of Electors appointed; and if no person have such majority, then from the persons having the highest numbers not exceeding three on the list of those voted for as President, the House of Representatives shall choose immediately, by ballot, the President. But in choosing the President, the votes shall be taken by states, the representation from each state having one vote; a quorum for this purpose shall consist of a member or members from two-thirds of the states, and a majority of all the states shall be necessary to a choice. And if the House of Representatives shall not choose a President whenever the right of choice shall devolve upon them, before the fourth day of March next following, then the Vice-President shall act as President, as in the case of the death or other constitutional disability of the President.—The person having the greatest number of votes as Vice-President, shall be the Vice-President, if such number be a majority of the whole number of Electors appointed, and if no person have a majority, then from the two highest numbers on the list, the Senate shall choose the Vice-President; a quorum for the purpose shall consist of two-thirds of the whole number of Senators, and a majority of the whole number shall be necessary to a choice. But no person constitutionally ineligible to the office of President shall be eligible to that of Vice-President of the United States.

中文: 选举人在各州集会，分别投票选举总统与副总统，其中至少一人不得与选举人同为一州居民；选举人应在选票上写明总统人选，并另写选票写明副总统人选，分别列出总统、副总统得票名单及票数，签名盖章密封后送交参议院议长。参议院议长应在参众两院议员面前开启证书、统计票数。获得总统选票过半数者当选总统；无人过半数时，众议院从得票最高的前三名中投票选出总统。众议院选举总统时以州为单位投票，每州一票，需三分之二州议员出席、过半数州同意方可当选。若众议院未能在次年3月4日前选出总统，由副总统代行总统职权。获得副总统选票过半数者当选副总统；无人过半数时，参议院从得票最高的两人中投票选出，需三分之二参议员出席、过半数同意。凡宪法规定无总统任职资格者，亦不得担任副总统。

Amendment XIII 第十三修正案（1865生效）废除奴隶制

Section 1

English: Neither slavery nor involuntary servitude, except as a punishment for crime whereof the party shall have been duly convicted, shall exist within the United States, or any place subject to their jurisdiction.

中文: 在合众国及其管辖的任何区域内，不得存在奴隶制或强制劳役，但作为合法定罪的刑罚不在此限。

Section 2

English: Congress shall have power to enforce this article by appropriate legislation.

中文: 国会有权通过适当立法实施本条修正案。

Amendment X IV 第十四修正案（1868生效）公民权、平等法律保护、国会席位、公职资格、联邦债务

Section 1

English: All persons born or naturalized in the United States, and subject to the jurisdiction thereof, are citizens of the United States and of the State wherein they reside. No State shall make or enforce any law which shall abridge the privileges or immunities of citizens of the United States; nor shall any State deprive any person of life, liberty, or property, without due process of law; nor deny to any person within its jurisdiction the equal protection of the laws.

中文: 所有在合众国出生或归化、受合众国管辖的人，均为合众国及其居住州的公民。任何州不得制定或实施剥夺合众国公民特权与豁免权的法律；非经正当法律程序，任何州不得剥夺任何人的生命、自由或财产；不得拒绝给予其管辖范围内任何人平等的法律保护。

Section 2

English: Representatives shall be apportioned among the several States according to their respective numbers, counting the whole number of persons in each State, excluding Indians not taxed. But when the right to vote at any election for the choice of electors for President and Vice President of the United States, Representatives in Congress, the Executive and Judicial officers of a State, or the members of the Legislature thereof, is denied to any of the male inhabitants of such State

（注：部分内容由豆包工作 AI 生成）